Higher National Diploma in Quantity Surveying

Second Year, First Semester Examination – 2023

QS 21032 – Contract Law I

Instructions for Candidates:
Answer four questions only.
All questions carry equal marks.

No. of questions : 05
No. of pages : 02
Time :Two (02) hours

Question 01

I. Name the sources of law in Sri Lanka. (05 Marks)

II. Define the Common Law in Sri Lanka. (05 Marks)

III. Explain the terms of "Territorial Law" and "Personnel Law" with suitable examples. (05 Marks)

IV. What must a custom fulfil to become a law? (05 Marks)

V. Describe the difference between a commercial and a domestic agreement. (05 Marks)

(Total 25 Marks)

Question 02

I. Briefly describe the court structure of the Sri Lankan judicial system. (05 Marks)

II. State 'district court' jurisdiction (05 Marks)

III. Define 'Contract' (05 Marks)

IV. What are the essential requirements for the formation of a valid contract? (05 Marks)

V. Distinguish between a "contract" and a "deed." (05 Marks)

(Total 25 Marks)

Question 03

I. What are the legal rules regarding a valid offer? (05 Marks)

II. What are the differences between an offer and an invitation to treat? (05 Marks)

III. How can an original offer be rejected? (05 Marks)

IV. Explain the Postal Rule (Expedition Theory). (05 Marks)

V. Explain types of 'misrepresentation.' (05 Marks)

(Total 25 Marks)

Question 04

I. Distinguish the term "condition" from "warranty." (05 Marks)

II. Describe the relationship between an offer and a tender invitation. (05 Marks)

III. What is the meaning of "termination by frustration"? (05 Marks)

IV. What do you mean by "Contractual Capacity" under the Law of Contract? (05 Marks)

V. What constitutes a breach of contract? (05 Marks)

(Total 25 Marks)

Question 05

I. What are the essential components of a construction contract? (05 Marks)

II. Explain the term 'Bid Data Sheet'. (05 Marks)

III. State two objectives of the Bill of Quantities. (05 Marks)

IV. What are the advantages of lump-sum Sum Contracts? (05 Marks)

V. What are the situations that have to be gathered for a construction contract? (05 Marks)

(Total 25 Marks)